

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Team # 3	CCRB Case #: 201411217	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 11/04/2014 12:00 PM	Location of Incident: Newtown Road and 30th Avenue	18 Mo. SOL 5/4/2016	Precinct: 114
Date/Time CV Reported Tue, 11/04/2014 10:42 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 11/04/2014 10:42 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Dulitz	11837	945184	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Dulitz	Discourtesy: PO Daniel Dulitz acted rudely toward § 87(2)(b)	A . Unsubstantiated

Case Summary

On November 4, 2014, at 12:00 p.m., § 87(2)(b) left work § 87(2)(b) using a “transporter car” that the dealership owned and lent out to employees during the work day. The dealership has dealer license plates which were registered to the dealership and can be used in any of these transporter vehicles.

§ 87(2)(b) was on her way to pick up lunch at Rizzo’s Fine Pizza when she was pulled over by a marked RMP on the southwest corner of the intersection of Newtown Road and 30th Avenue in Queens.

PO Daniel Dulitz, from the 114th Precinct, said something to § 87(2)(b) car over the loudspeaker, but at the time, § 87(2)(b) could not understand what he was saying. In response, § 87(2)(b) lifted her hands toward her head, while holding the dealer plate in her right hand, to indicate that she could not hear him. PO Dulitz repeated the request, but § 87(2)(b) still could not understand the request so she kept her hands on the wheel. § 87(2)(b) stated that she later realized that PO Dulitz was instructing her to put her keys on top of her car.

PO Dulitz approached the car and instructed § 87(2)(b) to hand over the keys. § 87(2)(b) complied. PO Dulitz then informed § 87(2)(b) that she was driving an unregistered car without license plates. § 87(2)(b) explained that she had a dealer plate and showed it to PO Dulitz. PO Dulitz allegedly grabbed the dealer plate and threw it so that it landed in the middle of the street. PO Dulitz requested § 87(2)(b)’s license, who provided it along with two PBA cards. PO Dulitz took the cards from her hand, took her license and allegedly threw the PBA cards back at her. The cards struck her body (**Allegation A**).

PO Dulitz returned to his car and after five minutes, § 87(2)(b) opened the door to retrieve the dealer plate from the street. PO Dulitz told § 87(2)(b) to get back in the car over the loudspeaker. § 87(2)(b) complied and got back in her car. After another five minutes, PO Dulitz retrieved the plate and handed it to § 87(2)(b) along with two summonses for driving an unregistered vehicle and driving without a license plate.

§ 87(2)(g)

Mediation and Criminal Histories

§ 87(2)(b) was offered mediation, but preferred to pursue an investigation § 87(2)(b)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officers CCRB Histories

- PO Dulitz has been a member of the service for 7 years and has two prior CCRB cases where allegations were exonerated, or the complainant was withdrawn § 87(2)(g)
- This is § 87(2)(b)’s first CCRB complaint (encl. A2).

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Dulitz acknowledged his interaction with § 87(2)(b) during the car stop.

Allegation A- Discourtesy: PO Daniel Dulitz acted rudely toward § 87(2)(b)

In the statement she provided to the CCRB on November 10, 2014 (encl. E1-E2), § 87(2)(b) alleged that PO Dulitz threw her dealer license plate in the street and threw her PBA cards at her (encl. E1-E5). It was confirmed that § 87(2)(b) § 87(2)(b) who filed the complaint, did not witness the incident.

In the statement he provided to the CCRB on December 3, 2014 (encl. F7-F8), PO Dulitz denied that he ever threw the dealer plate in the street and stated that when § 87(2)(b) attempted to hand it to him, he did not accept it. PO Dulitz also denied that he ever held or threw § 87(2)(b)'s PBA cards. He stated that when § 87(2)(b) attempted to hand the PBA cards to him, he verbally refused them (encl. F1-F8).

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it is recommended that **Allegation A** be *unsubstantiated*.

Team: _____

Investigator: _____

Signature _____ Print _____ Date _____

Supervisor: _____

_____	_____	_____
Title/Signature	Print	Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature	Print	Date
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